

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2023CUPP017462: RACHELLE LONGO, et al. vs RUPA SHARMA, et al.

09/08/2026 in Department 21

Demurrer to Plaintiffs' Second Amended Complaint

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

1. Defendant Erwin Pineda’s Demurrer to Plaintiffs’ Second Amended Complaint (*Opposed*)
2. Defendant Erwin Pineda’s Motion to Strike Portions of Plaintiffs’ Second Amended Complaint (*Opposed*)

Tentative Ruling:

Defendant Erwin Pineda’s (“Pineda”) demurrer to Plaintiffs’ Second Amended Complaint (“SAC”) is SUSTAINED with leave to amend as to the First Cause of Action (general negligence), Second Cause of Action (premises liability), Fourth Cause of Action (fraud), Fifth Cause of Action (concealment), Sixth Cause of Action (gross negligence), Seventh Cause of Action (intentional infliction of emotional distress), and Eighth Cause of Action (retaliatory eviction) on the ground that the pleading fails to state facts sufficient to constitute a cause of action against Pineda. (Code Civ. Proc., § 430.10, subd. (e).)

The demurrer for uncertainty is OVERRULED. Although the SAC does not adequately allege Pineda-specific facts, it identifies the claims, the underlying transactions and events, and the Doe-agency theory sufficiently to permit Pineda to understand what claims are asserted. The deficiency is one of factual sufficiency, not such uncertainty that Pineda cannot reasonably respond. (Code Civ. Proc., § 430.10, subd. (f); *Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Pineda’s motion to strike is GRANTED with leave to amend as to Pineda. The following portions of the SAC are stricken as against Pineda: (1) the punitive-damages demand in

paragraph 14; (2) the punitive-damages allegation in the Fourth Cause of Action at page 7; (3) the punitive-damages allegation in the Fifth Cause of Action at page 8; and (4) the attorney-fee demand in paragraph 11. (Code Civ. Proc., §§ 435, 436, 437.)

Plaintiffs shall file and serve any Third Amended Complaint within 15 days of service of notice of this ruling.

Counsel for Defendant Pineda shall give notice of the Court's ruling.

Discussion:

I. Demurrer

Plaintiffs allege that Does 1 through 15 were agents or employees of other named defendants acting within the scope of the agency or employment, and Pineda was later substituted for Doe 2. (SAC, ¶ 6(a); Amendment to Complaint [Doe 2], filed 5/27/26.) This general agency allegation does not, however, allege what Pineda personally did or failed to do, whose agent he allegedly was in connection with the challenged conduct, what duty he personally owed Plaintiffs, or how his conduct caused Plaintiffs' injuries. A Doe amendment substitutes the defendant's true name; it does not itself add charging allegations.

Pineda's broader contention that he cannot be sued individually merely because he was an employee, officer, or agent of a corporate broker is not a sufficient basis for the ruling. Corporate status does not categorically immunize an individual from liability for tortious conduct the individual personally authorizes, directs, or meaningfully participates in. (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 503-505.)

The problem here is that the SAC does not allege such personal participation by Pineda.

First, Second, and Sixth Causes of Action: Negligence, Premises Liability, and Gross Negligence

The First Cause of Action alleges generally that "Defendants" owed and breached duties concerning the leasing, management, inspection, repair, and remediation of the property, but it identifies the property owners as Rahul and Rupa Sharma and does not identify any act, omission, role, or duty specific to Pineda. (SAC, First Cause of Action, GN-1, p. 4.) The Second Cause of Action stated in the premises-liability form likewise identifies particular named defendants in the ownership, management, and warning fields, while alleging Does 1 through 30 generally, without alleging facts showing Pineda's possession, control, management role, notice, duty, or breach. (SAC, Second Cause of Action, Prem.L-1 through Prem.L-5, p. 5.)

The Sixth Cause of Action alleges gross negligence collectively against the Sharmas, Kahn, Coldwell Banker Northridge, and Does 1 through 30, but does not identify conduct by Pineda. (SAC, Sixth Cause of Action, GN-1, p. 9.) Because gross negligence is a degree of negligence rather than an independent common-law cause of action, and the SAC does not adequately allege ordinary negligence by Pineda, it likewise does not allege facts showing a want of even scant

care or an extreme departure from the ordinary standard of conduct by him. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 552, fn. 3; *City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 754, 779-780.)

Fourth and Fifth Causes of Action: Fraud and Concealment

Fraud must be pleaded with particularity, including facts showing how, when, where, to whom, and by what means the challenged representations were made. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The SAC identifies Kahn and Rahul Sharma as the persons who made the pre-lease representations and also attributes a statement concerning the cosmetic nature of the damage to Rupa Sharma. It does not allege any representation, communication, knowledge, authorization, or participation by Pineda. (SAC, Fourth Cause of Action, IT-1, p. 7.) The general allegation that Does 1 through 15 were agents or employees does not supply the particularized facts necessary to plead fraud against Pineda.

The concealment claim similarly alleges that “Defs” concealed prior water damage, intrusion, and mold, but it does not allege a relationship between Pineda and Plaintiffs or facts giving rise to a duty by Pineda to disclose. (SAC, Fifth Cause of Action, IT-1, p. 8.) A concealment claim requires, among other things, concealment of a material fact by a defendant who was under a duty to disclose it. (*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850.)

Seventh Cause of Action: Intentional Infliction of Emotional Distress

The Seventh Cause of Action’s factual allegations concern conduct by Rahul Sharma, including alleged refusal to inspect or remediate, entries onto the property, threats, and other conduct; the pleading expressly alleges that Rahul engaged in IIED and seeks punitive damages from Rahul and Rupa. (SAC, Seventh Cause of Action, IT-1, p. 10.) It alleges no extreme or outrageous conduct by Pineda. The generalized Doe allegation does not supply the missing Pineda-specific conduct.

Eighth Cause of Action: Retaliatory Eviction

Civil Code section 1942.5 permits liability against a lessor or an agent of a lessor who violates the statute. (Civ. Code, § 1942.5, subd. (h).) The SAC alleges that Rupa and Rahul Sharma owned the property and that “said Defendants” retaliated by initiating eviction proceedings and causing Plaintiffs to quit involuntarily after Plaintiffs exercised habitability-related rights. (SAC, Eighth Cause of Action, IT-1, p. 11.) But the SAC does not allege facts showing that Pineda was an agent of the lessor with respect to the tenancy or that he participated in any retaliatory act. The generic Doe-agency allegation is insufficient to bridge that gap.

Leave to Amend

Plaintiffs’ opposition does not identify concrete additional facts; it states only that Plaintiffs can allege further facts concerning Pineda’s “role, knowledge, involvement, authorization, communications, and participation” as supported by investigation and discovery. Nevertheless,

Pineda was substituted for Doe 2 after the SAC had already been filed, and this is the first pleading challenge directed to the sufficiency of the allegations as to him. On this record, the Court cannot conclude that amendment is necessarily futile. Plaintiffs therefore are entitled to receive one opportunity to allege, if they can do so consistently with their obligations under Code of Civil Procedure section 128.7, facts showing Pineda's specific role, acts or omissions, duties, communications, knowledge, participation and, in the fraud-based causes of action, the particulars required by *Lazar*. (*Lazar v. Superior Court*, *supra*, at p. 645; See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43-44.)

II. Motion to Strike

Punitive damages require ultimate facts supporting an inference that the defendant against whom punitive damages are sought acted with oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a); *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872; *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) The SAC alleges no Pineda-specific act, knowledge, intent, representation, concealment, or retaliatory conduct from which the requisite state of mind reasonably may be inferred. Civil Code section 1942.5 does not alter this conclusion at the pleading stage because, although subdivision (h) permits punitive damages for a retaliatory act by a lessor or agent committed with fraud, oppression, or malice, the SAC does not allege facts showing Pineda was the lessor's agent for the tenancy or committed a retaliatory act. (Civ. Code, § 1942.5, subd. (h)(2).)

The attorney-fee demand is also unsupported as to Pineda by the present pleading. The lease-based contract claim identifies Rachelle Longo, Rahul Sharma, and Rupa Sharma as the contracting parties; it does not allege that Pineda was a party to or otherwise bound by the lease. (SAC, Third Cause of Action, BC-1, BC-5, p. 6.) Civil Code section 1942.5, subdivision (i), requires an award of reasonable attorney fees to the prevailing party in an action for damages for retaliatory eviction if fees are requested at initiation, but the SAC presently alleges no facts bringing Pineda within the retaliatory-eviction claim. If Plaintiffs can cure the underlying Pineda-specific pleading defects, they may replead any corresponding remedy supported by the amended allegations and applicable law.

III. Conclusion:

Plaintiffs shall file and serve any Third Amended Complaint within 15 days of service of notice of this ruling.